Lovely@Amit vs State Of Uttar Pradesh And Another on 18 July, 2022

Author: Vivek Kumar Singh

Bench: Vivek Kumar Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 69

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 20185 of 2021

Applicant :- Lovely@Amit

Opposite Party :- State Of Uttar Pradesh And Another

Counsel for Applicant :- Gaurav Singh Chauhan,Anoop Singh

Counsel for Opposite Party :- G.A.,Pravesh Kumar

Hon'ble Vivek Kumar Singh,J.
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Heard learned counsel for the applicant and Sri Abhinav Prasad, learned brief holder appearing for the State.

It has been contended by the learned counsel for the applicant that the applicant has been falsely implicated in the present case due to ulterior motive. It is next contended that initially the first information report of the alleged incident was lodged under Sections 354-B, 323 I.P.C. and Section 5/6 of The Protection of Children From Sexual Offences Act, in which the applicant was granted by this Court vide order dated 3.2.2021 passed in Criminal Misc. Bail Application No.7926 of 2021, a copy of said order is annexed as anneuxre-9 to this bail application. It is further submitted that when the applicant was released in aforesaid section then offence under Sections 375-C, 376-AB I.P.C. and Section 5(AM)/6 of the POCSO Act has been added in the same case crime only for the purpose of harassment. It is further submitted that no such offence has been committed by the

applicant. It is further submitted that medical examination of the victim has been refused by her father, reference in this regard is made to annexure-4 to this bail application. Several other submissions in order to demonstrate the falsity of the allegations made against the applicant have also been placed forth before the Court. The circumstances which, according to the counsel, led to the false implication of the accused has also been touched upon at length. It has been assured on behalf of the applicant that he is ready to cooperate with the process of law and shall faithfully make himself available before the court whenever required. It has also been submitted that the applicant is languishing in jail since 26.2.2020. It has been pointed out that the applicant has no criminal history.

Learned A.G.A. opposed the prayer for bail.

Considering the nature of accusation and the severity of punishment in case of conviction and the nature of supporting evidence, reasonable apprehension of tempering of the witnesses and prima facie satisfaction of the Court in support of the charge and reformative theory of punishment the applicant is entitled to be released on bail in this case.

Let the applicant Lovely @ Amit involved in Case Crime No.84 of 2020, under Sections 375-C, 376-AB I.P.C. and Section 5(AM)/6 of the Protection of Children From Sexual Offence Act, Police Station Sikandrabad, District Bulandshahar be released on bail on his furnishing a personal bond with two sureties (one should of family member) each in the like amount to the satisfaction of the court concerned with the following conditions.

(i) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code.

(iii) In case, the applicant misuses the liberty of bail during trial and in order to secure his presence proclamation under Section 82 Cr.P.C. is issued and the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.

(iv) The applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 Cr.P.C. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

In case of breach of any of the above conditions, the trial court will be at liberty to cancel the bail.

The trial Court is directed to expedite the trial of the present case and conclude the same as expeditiously as possible, keeping in view the law laid down by the Apex Court in the case of Alakh Alok Srivastava Vs. Union of India and another reported in AIR 2018 (SC) 2440, if there is no legal impediment.

It is clarified that the observations, if any, made in this order are strictly confined to the disposal of this bail application and must not be construed to have any reflection on the ultimate merits of the case.

Order Date :- 18.7.2022 Dev/-